



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 7, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202205441 (Incident Date: August 14, 2022) regarding Police Officer Michael Zhang, Tax No. 968202 (DADS No. 2023-29146)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Police Officer Zhang.

On August 14, 2022, Police Officer Michael Zhang stood at the subway turnstiles at the 14th Street-Union Square subway station. Police Officer Zhang observed an individual use a reduced-fare MetroCard to enter the subway system. Police Office Zhang observed a red light illuminate at the turnstile used by the complainant after the complainant swiped a MetroCard. As the individual walked past, the officer stopped him, and when asked about the card, the individual stated that it belonged to his grandmother. Reduced fare MetroCards are issued to people with disabilities or senior citizens. The complainant did not fit either criteria. Uniform members of the service may exercise discretion when undertaking enforcement. Based on the facts of this case and the video footage, Officer Zhang did not issue a summons to retaliate against the individual. Instead, he had probable cause to believe that the individual illegally used a reduced-fare Metrocard. Therefore, the individual violated the rules of the Metropolitan Transit Authority

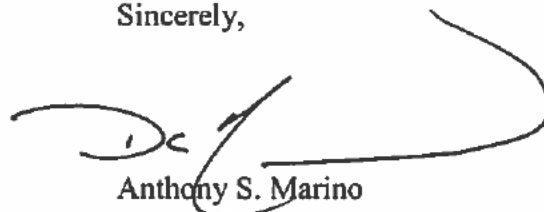
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("MTA") rules when he used a reduced-fare Metrocard; therefore, the summons for theft of services was lawful. The officer issued the summons based on his observation of the illegal activity. Notably, Police Officer Zhang also used his discretion to return the individual the Metrocard instead of confiscating it. The available evidence, including Body-worn camera footage, shows Police Officer Zhang exercising his discretion twice. The evidence establishes that Police Officer Zhang did not issue a retaliatory summons but used his discretion in issuing a lawful summons.

Based on the totality of the circumstances, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Zhang for the allegation that he issued a retaliatory summons to an individual.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office